

FIRST ENDORSEMENT

Chief Prosecutor, Civilian Complaint Review Board to Deputy Commissioner Paul M. Gamble, Sr., Department Advocate's Office, October 21, 2024. Contents noted. Recommend approval of the negotiated plea agreement in DADS No. 2023-28992 against Police Officer Claude Staten, Tax Registry No. 891057. The case was conferenced on October 10, 2024, before Assistant Deputy Commissioner of Trials Anne E. Stone, who approved a Command Discipline Schedule A with the negotiated penalty of a forfeiture of five (5) vacation days.¹ Charges and Specifications are dismissed for plea purposes.

Andre Applewhite

Chief Prosecutor

New York City Civilian Complaint Review Board

¹ Although ADCT Stone endorsed the negotiated settlement, she suggested that a penalty of two or three days may be more appropriate given that the penalties for "Failure to Process a Civilian Complaint" in the NYPD Disciplinary Matrix have been modified since the signing of this negotiated settlement. Nevertheless, CCRB maintains that the negotiated penalty of a forfeiture of five vacation days is the appropriate disposition for this matter.



DISPOSITION OF CHARGES
PD 468-142(Rev. 8-89)-2

CASE NO. 2023-28992
BOOK & PAGE NO. Page <u>1</u> of <u>1</u>
PERSONNEL ORDER NO.

RANK/TITLE PO	SURNAME, STATEN	FIRST CLAUDE	M.I.	COMMAND 46TH PRECINCT
SHIELD NO. 891057	TAX REGISTRY NO. 891057	SOCIAL SECURITY NO.	DATE APPOINTED 07/15/1986	
RANK/NAME OF COMPLAINANT				COMMAND
DATE OF CHARGES		DATE TRIAL COMMENCED		DATE TRIAL CONCLUDED

TRIAL COMMISSIONER

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
1. Police Officer Claude Staten, on or about May 31, 2022, at approximately 0131, while assigned to 046PCT and on duty, inside the 46th Precinct stationhouse, Bronx County, engaged in conduct prejudicial to the good order, efficiency, or discipline of the New York City Police Department, in that he refused to process § 87(2)(b) complaint regarding an officer.	DISMISSED	VACATION DAYS 5.00 - It is recommended that the Respondent forfeit the amount of vacation days as indicated. A - COMMAND DISCIPLINE 1.00 - It is recommended that the Charges and Specifications be dismissed and that the matter be remanded to the Respondents command for imposition of a Schedule A Command Discipline with the forfeiture of the amount of vacation days as indicated.

DC Bravio
FIRST DEPUTY COMMISSIONER

12/5/24
DATE

POLICE COMMISSIONER'S APPROVAL

- ☒ Approved
☐ Disapproved
☐ Other Action (Describe)

Jesse Jiser
POLICE COMMISSIONER

12/24/24
DATE

THIRD ENDORSEMENT

First Deputy Commissioner to Police Commissioner, December 5, 2024. Contents noted. I reviewed the negotiated plea in Disciplinary Case No. 2023-28992 (PODS Case #C-031550; CCRB Case #202203515) against Police Officer Claude Staten, Tax #891057, with the recommendation that the Charges and Specifications against Police Officer Staten be dismissed and that Police Officer Staten receive a Schedule "A" Command Discipline and forfeit five (5) vacation days. Assistant Deputy Commissioner, Trials Anne E. Stone reviewed this case and made a favorable recommendation pertaining to the proposed settlement; I concur.
RECOMMEND APPROVAL.

TIK/pk

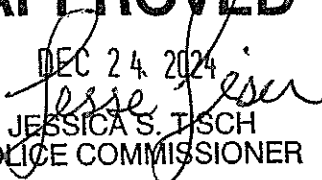


Tania I. Kinsella

FIRST DEPUTY COMMISSIONER

APPROVED

DEC 24, 2024



JESSICA S. TISCH

POLICE COMMISSIONER